

Kamare Alam v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · WRIT - C No. - 9335 of 2022 · **Liberty to file Para 6.8 objection; coercive recovery stayed**

HEADNOTE

Writ against a recovery notice of Rs 3,54,338 on a domestic connection disposed of without any opinion on merits, with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. A timely objection is to be decided by respondent no. 3 within the next four weeks after hearing. Coercive action on the notice is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Kamare Alam, a domestic consumer under meter no. 154922, received a recovery notice dated 16 December 2021 demanding Rs 3,54,338. He filed a writ in the Allahabad High Court seeking certiorari to quash the notice and a mandamus restraining coercive recovery. Counsel for respondent no. 3 stated on instructions that the petitioner could file an objection to the demand and that it would be decided in accordance with law within a time-bound period. The Division Bench heard counsel for the petitioner, the State, and respondent no. 3.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to recovery demand as alternate remedy

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, along with a certified copy of the order. If submitted in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand dated 16.12.2021. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court left the recovery notice of Rs 3,54,338 unexamined on merits and relegated Kamare Alam to an objection under Para 6.8 before respondent no. 3, to be filed within four weeks and decided after hearing within the next four weeks, with coercive action stayed for eight weeks or until that decision. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 16.12.2021 DEMANDING RS 3,54,338 IS LIABLE TO BE QUASHED

The Court expressed no opinion on the merits and left the demand to be decided on the petitioner's Para 6.8 objection. ¶ 4